

23PSCV01900 23PSCV01900

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C08%2F27%2F2026

Source SHA-256: 77fbe87f275a321f41e8771d22f3a8e52a6b1eb83e2ed6ffcef95ddde6a76e22

Case Number: 23PSCV01900 Hearing Date: August 27, 2026 Dept: H

Heavy Metal Steel Company, Inc.

v. The Avenue Azusa, LLC, et al.,

Case No. 23PSCV01900

ORDER ON MOTION FOR ASSIGNMENT ORDER

Plaintiff/Judgment Creditor Heavy Metal

Steel Company, Inc.'s Motion for Assignment Order is CONDITIONALLY GRANTED IN PART pending submission of a revised Proposed Order consistent with this ruling.

Background

Plaintiff/Judgment

Creditor Heavy Metal Steel Company ("Heavy Metal") entered into a sub-subcontract with Defendant/Judgment Debtor Sahara Construction Company, Inc. ("Sahara") on April 5, 2022 for Sahara to install the rebar required for a mixed-use construction project called "Lumia Azusa II" in Azusa, California (the "Lumia Project").

Disputes

over payment arose during the Lumia Project, and Heavy Metal eventually filed this action, naming six defendants and 50 Does and asserting a total of 11 causes of action for breach of contract and related claims.

On

September 19, 2024, after all other defendants were dismissed, the Court entered default judgment for Heavy Metal against Sahara in the total sum of \$251,659.89 (the "Judgment").

As

part of its continuing effort to enforce the Judgment, Heavy Metal filed the instant Motion for an Assignment Order on March 25, 2026.

Heavy

Metal requests an order that Sahara assign to Heavy Metal all accounts receivable, etc. due or to come due under its subcontracts with third party Build Group, Inc. (Build Group), and an order that Build Group pay any and all such amounts to Heavy Metal until satisfaction of the Judgment in this action.

Heavy

Metal electronically served Sahara, Build Group, and another third party, Staples Construction Co., Inc., with its moving papers. No opposition has been filed.

Legal

Standard

“Except

as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor. . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:

(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order.

(2) Rents.

(3) Commissions.

(4) Royalties.

(5) Payments due from a patent or copyright.

(6) Insurance policy loan value.”

(Code

Civ. Proc., § 708.510, subd. (a).)

“The

notice of the motion shall be served on the judgment debtor. Service shall be made personally or by mail.” (Code Civ. Proc., § 708.510, subd. (b).)

“[I]n

determining whether to order an assignment or the amount of the assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following:

- (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.
- (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.
- (3) The amount remaining due on the money judgment.
- (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.”

(Code

Civ. Proc., § 708.510, subd. (c).)

“A

right to payment may be assigned pursuant to this article only to the extent necessary to satisfy the money judgment.” (Code Civ. Proc., § 708.510, subd. (d).)

Discussion

The

Court assumes the parties’ familiarity with its prior assignment orders in this case. As it has done so in connection with prior requests for assignment orders, here, Heavy Metal has demonstrated that Sahara has ongoing claims against funds held by Build Group, and vice versa. (See Rosenberg Decl., Exh. 3 [minute orders reflecting consolidated litigation between Sahara and numerous entities including Build Group].) This contention is unopposed; Heavy Metal thus has demonstrated there may be a right to payment due, or to become due, from Build Group to Sahara, via litigation or otherwise.

As

a general matter, Heavy Metal has established it is entitled to an assignment

of those rights to the extent necessary to satisfy the Judgment in this action.

However,

the Court determines that the following corrections need to be made to the proposed order submitted by Heavy Metal:

1. Paragraph 2 refers to Staples, not Build Group;
2. The Court strikes "This duty shall also apply . . . pay such amounts." from paragraph 3. "[A]ny surety or other person" is not before the Court for purposes of this motion and cannot be subject to the Order;
3. The Court strikes "including judgment interest . . . attorneys' fees and costs" from paragraph 3 as unnecessary; and
4. The Court strikes paragraph 4 in its entirety; if Heavy Metal intends to intervene, settle, or compromise in other litigation, that is a question for the court overseeing that litigation.

Conclusion

The

Court CONDITIONALLY GRANTS Heavy Metal's motion IN PART, subject to the filing of a revised Proposed Order conforming to the terms of this ruling.

The

Court sets a Non-Appearance Case Review for September 11, 2026 to track receipt of the revised proposed order. Heavy Metal is ordered to file its revised proposed order by September 9, 2026.